

Tentative Rulings for August 17, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
30-2024-01387116-CU-WT-WJC	ONGKEKO vs MAYS-FONTAINE	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

Tentative Ruling:

Non-opposition filed. Motion granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON vs GIBSON	MOTION TO COMPEL

Tentative Ruling:

Summary of Ruling: Plaintiffs' Motion to Compel Compliance is **MOOT** if full production is completed before the hearing. Otherwise, the Court grants the Motion to Compel Compliance within 10 days. The Court grants Plaintiffs' request for monetary sanctions in the amount of \$1,410.00.

Factual/Procedural Context

Plaintiff Natalie Mary Moton ("Plaintiff") operates a working ranch in Temecula known as Namaste Farms where she has specialized in the production of wool, fiber, and wool products. (Compl. ¶ 6.) Plaintiff and Defendant Joni Gibson ("Defendant") are neighbors involved in a related title dispute—*Moton v. The Ark, LLC*, Case No. CVSW2204328, filed in 2022—in which the parties stipulated that Defendant is not a good faith purchaser of property as the purchase took place while Defendant knew that Plaintiff has a claim to the property. (*Id.* at ¶¶ 7–9.)

Plaintiff alleges that beginning around September 3, 2024, Defendant began posting false claims on social media that animals at Namaste Farms, including dogs, were abused daily. (*Id.* at ¶ 11, Ex. A.) The posts included photos of an emaciated sheep that did not belong to Plaintiff and lacked any USDA ear tag, and Defendant posted a link to Namaste Farms' homepage to encourage others to repeat the allegations. (*Id.* at ¶ 12.)

On September 6, 2024, Riverside County Animal Control and the Sheriff's Department investigated and determined the allegations were "unfounded," closing the investigation, as confirmed in the video transcript where the Sergeant of the Animal Control agreed the case was unfounded. (*Id.* at ¶ 15, Ex. B.) Plaintiff alleges that despite this, Defendant doubled down on September 7, 2024, falsely claiming Plaintiff had "swapped out" animals before investigators arrived, and removed the exonerating animal control video from her feed on September 11, 2024, while reposting the original false post and refusing to remove it or issue a retraction. (*Id.* at ¶ 16, Ex. C.)

On September 18, 2024, Plaintiff filed a Complaint against Defendant and her husband, Oliver Gibson (collectively, "Defendants"), asserting two causes of action: (1) defamation (libel per se), and (2) defamation (trade libel). Plaintiff seeks a preliminary and permanent injunction against Defendant from engaging in the alleged defamation, along with an order to take down the alleged defamatory posts. Plaintiff also seeks compensatory and general damages in an amount not less than \$1,000,000.00.

On February 14, 2025, Defendants filed their Answer to the Complaint, denying each and every allegation and asserting six affirmative defenses: (1) truth, (2) opinion, (3) Plaintiff is a public figure, (4) harm was caused by Plaintiff's actions, not Defendants', (5) Defendants' actions were based on facts as known to them, and (6) mitigation.

On January 13, 2026, Plaintiff propounded several sets of discovery on Defendant, including Requests for Production of Documents ("RFPs"), Set Two. As relevant to the current motion, RFP Nos. 18–25 sought digital copies of all photos previously produced in discovery by Defendant with all preserved metadata, all documents that she identified in her responses to Form Interrogatories ("FROGs") concurrently served and the documents identified in her responses to Special Interrogatories ("SROG").

Defendant served unverified responses to RFPs on March 3, 2026, with verifications received on March 16, 2026. In her responses, Defendant agreed, subject to privilege objections, to produce documents responsive to each request, including native digital photographs with preserved metadata and executed witness declarations, Riverside County Code Enforcement records, and native digital photographs of the animals.

On March 5, 2026, Plaintiff sent a meet-and-confer letter addressing the deficiencies in Defendant's responses. On March 20, 2026, Defense counsel emailed apologizing for the delay, but no documents followed.

On March 27, 2026, Plaintiff sent another meet-and-confer letter addressing the deficiencies. Plaintiff sent follow-up emails on April 6 and 13, 2026, with no response and no production received. Defense counsel had also confirmed by phone that records would be produced by the end of the week of April 10, 2026, but no production followed.

On April 22, 2026, Plaintiff filed the instant motion to compel compliance regarding RFPs, Set Two. No production of the RFP documents has been made.

Plaintiff moves under CCP § 2031.320 for an order compelling Defendant to produce documents she agreed to produce in her verified responses to RFPs, Set Two. Plaintiff explains that on March 3, 2026, Defendant served unverified responses agreeing to produce responsive documents, with verifications received March 16, 2026, but Defendant never produced the documents despite repeated promises. Plaintiff cites CCP § 2031.320 and *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903 for the rule that all that must be shown is the responding party's failure to comply as agreed. Plaintiff seeks monetary sanctions against Defendant in the amount of

\$1,410.00, noting this is the second motion Plaintiff has had to bring to obtain records, with prior discovery orders and sanctions already entered against Defendants.

Defendant's initial June 1, 2026 opposition did not address the merits but requested a continuance based on lack of service, asserting that her counsel's firm had no record of ever having received the motion and that neither her counsel nor anyone else in the firm has ever received the motion. This Court continued the hearing to July 15, 2026, and set a briefing schedule for substantive opposition and reply.

Defendant thereafter filed a substantive opposition through her new counsel, who declared that he had recently taken over the matter and believed he could resolve the RFPs, Set Two discovery issues before the hearing. (Daher Decl. ¶¶ 1–2.) In Defendant's separate statement, Defendant represented that new counsel was meeting and conferring with Plaintiff's counsel, expected the issues to be resolved before the hearing, and anticipated producing all relevant, non-privileged documents. (Def.'s Separate Statement pp. 2–9.)

In reply, Plaintiff emphasizes that Defendant does not meaningfully oppose the motion and instead say only that new counsel will meet and confer and produce records before the hearing. Plaintiff states that, as of the reply, she still had not received the subject records despite prior promises of production. Plaintiff also contends that objections not asserted in the original responses were waived, and that the delay has needlessly prolonged discovery, including meaningful depositions. Plaintiff thus asks the Court to order production of RFP Nos. 18–25 within 10 days and award \$1,410.00 in sanctions.

Analysis

CCP § 2031.320(a) authorizes the Court to compel compliance where a party that served a statement of compliance “thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance.” (CCP § 2031.320(a).) Unlike a motion to compel further responses, a section 2031.320 compliance motion does not require a separate statement or meet-and-confer declaration. (*Standon Co. v. Sup. Ct.* (1990) 225 Cal.App.3d 898, 903.) The moving party’s burden is narrow: once the responding party has agreed to produce, “there is no longer any dispute over the right to inspect the documents or objects,” and the only question is whether the responding party has done what it promised. (*Id.*) Monetary sanctions are mandatory against the unsuccessful party absent substantial justification or other circumstances making sanctions unjust. (CCP § 2031.320(b).)

Plaintiff moves to compel production of documents Defendant agreed to produce in her verified responses to RFPs, arguing that no documents have been produced despite multiple promises. Defendant does not oppose on the merits. Instead, new counsel represents that he has recently taken over the matter and anticipates resolving all issues and producing all relevant, non-privileged documents prior to the hearing. (Daher Decl. ¶¶ 1–2.)

Defendant has thus effectively agreed to resolve the discovery issue by supplemental production before the hearing. If Defendant provides complete production of all documents she agreed to produce in her verified responses to RFP Nos. 18–25 before the hearing, there will be no remaining failure to comply requiring a court order, and the motion is moot as to the request for a compliance order. If production has not been completed by the hearing, the Court will grant the motion under section 2031.320(a) and order production within 10 days.

Monetary sanctions, however, remain appropriate regardless of whether production is completed before the hearing. Under section 2031.320(b), the Court “shall impose” a monetary sanction against a party who unsuccessfully opposes a motion to compel compliance, unless it finds substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.320(b).) Defendant’s opposition promised only future performance and did not contest the underlying failure to produce, nor offer substantial justification for the months long delay (from March 16, 2026, when verifications were served, through at least July 2, 2026) that necessitated this motion. Plaintiff’s requested sanctions of \$1,410.00, calculated at a \$300 hourly rate for approximately 4.5 hours of attorney time plus a \$60 filing fee, are reasonable. (Zemming Decl. ¶ 6.)

Ruling: At the hearing, the Court will inquire into the status of Defendant’s compliance with her verified agreement to produce documents responsive to RFP Set Two Nos. 18–25.

- If Defendant has completed production of all documents she agreed to produce before the hearing, the motion to compel compliance is **MOOT**.
- If Defendant has not completed production by the hearing, the Court grants the motion and orders Defendant to produce all documents she agreed to produce in response to RFP Set Two Nos. 18–25, within 10 days of the date of the order.
- The Court grants Plaintiff’s request for monetary sanctions in the amount of \$1,410.00.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406358	GARCIA MARTINEZ vs TOYOTA MOTOR SALES, U.S.A., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL

Tentative Ruling:

Matter to be taken under submission

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401589	VELASCO vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court Overrules Plaintiffs' Evidentiary Objection Nos. 1-3 as to the Declaration of Soheyl Tahsildoost.

The Court Overrule Plaintiffs' Evidentiary Objection No. 1 as to the Declaration of Donna Hooper.

The Court Sustains Plaintiffs' Evidentiary Objection No. 2 as to Exhibit N attached to the Declaration of Donna Hooper.

The Court Grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs).

Factual / Procedural Context:

This Song-Beverly action arises out of Plaintiffs Nicanor Velasco and Andres Alzate Gonzalez' ("Plaintiffs") purchase of a new 2023 Hyundai Tucson ("Vehicle"), which was sold with a warranty issued by Defendant Hyundai Motor America ("Defendant"). Plaintiffs alleged that after its purchase, the Vehicle exhibited numerous serious defects and nonconformities to warranty.

Accordingly, on March 22, 2024, Plaintiffs filed a Complaint against Defendant, asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express

Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act Section 1793.2.

The procedural history includes Defendant's motion to compel arbitration, Plaintiffs' motion to compel further responses to their first set of discovery and notice of settlement.

Plaintiffs now move for an award of \$33,105.50 in attorney fees using the lodestar method, along with a 1.5 multiplier of \$16,552.75 and \$2,596.50 in costs, for a total award of \$52,254.75.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rate and expended time are unreasonably excessive. Defendant further asserts that Plaintiffs' claimed "other" costs are unsupported by any evidence and should be taxed by \$1,420.00. Accordingly, Defendant contends that the Court should not award more than \$18,717.50 in attorney fees and \$1,176.50 in costs.

In reply, Plaintiffs maintain that the attorney fees and costs are reasonable.

Evidentiary Objections

Plaintiffs object to statements in the declarations of Donna Hooper and Soheyl Tahsildoost, alleging that they constitute improper argument, inadmissible opinion, and are irrelevant. The Court overrules Evidentiary Objection Nos. 1-3 as to the Declaration of Soheyl Tahsildoost. The Court overrules Evidentiary Objection No. 1 as to the Declaration of Donna Hooper. The Court sustains Evidentiary Objection No. 2 as to Exhibit N attached to the Declaration of Donna Hooper, as it applies to a different firm and is therefore irrelevant.

Analysis

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, Plaintiffs accepted Defendant’s C.C.P. § 998 offer, which states that Plaintiffs are the prevailing party and that Defendant shall pay Plaintiffs’ attorney fees, costs, and expenses upon separate motion. (Kirnos Decl., Exh. C, ¶ 5.)

A. Attorney Fees

At issue in this motion is the reasonableness of Plaintiffs’ request. The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Roger Kirnos, ¶ 28, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Caitlin Rice, Associate Attorney	6.2	\$425.00	\$2,635.00
Jeffery Mukai, Partner	1.6	\$495.00	\$792.00
Jacob Cutler, Partner	1.1	\$550.00	\$605.00
Matias Leite, Associate Attorney	7.2	\$350.00	\$2,520.00
Phil Thomas, Associate Attorney	16.3	\$450.00	\$7,335.00
Phil Thomas, Associate Attorney	21.4	\$500.00	\$10,700.00
Roger Kirnos, Managing Partner	0.1	\$600.00	\$60.00
Zachary Powell, Senior Attorney	1.3	\$425.00	\$552.50
Stephanie Rosado, Law Clerk	26.8	\$295.00	\$7,906.00
Anticipated Fees	3.5	\$425.00	\$1,487.50
TOTAL	85.5		\$34,593.00

Here, the hourly rates do not appear to be reasonable for Riverside County. Counsel is located in Los Angeles. Plaintiffs make no showing that they could not obtain local counsel, and therefore, are entitled to out of town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) Accordingly, the Court reduces the requested rates.

Next, there were nine timekeepers in this case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) In this case, there was one managing partner, two partners, one senior attorney, two associate attorneys, and one

law clerk. However, Plaintiffs do not explain how this routine lemon law action, which required nothing more complicated than basic discovery motions and a motion to compel arbitration, and settled via a C.C.P. § 998 offer, necessitated the higher billing rates of a partner or senior attorney. Accordingly, the attorneys' hourly rates should be reduced to that of an associate attorney.

Further, a review of the billing records reveals several instances of duplicative billing entries. For example, Law Clerk Rosado and Attorney Thomas billed a total of 49.6 hours for motions to compel further responses to Plaintiffs' first set of discovery. However, the Court previously addressed the reasonableness of the time and costs incurred in filing these motions when it denied Plaintiffs' request for sanctions on January 29, 2025, and granted Plaintiffs' request for sanctions on subsequent motions on October 28, 2025. Accordingly, the Court strikes 25.0 hours from Law Clerk Rosado's billing and 24.6 hours from Attorney Thomas' billing.

Counsel then seeks 3.5 hours in wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion. However, Attorney Rice already billed 2.7 for drafting the initial fee motion. There is no reason why such a routine fee motion should require more than 4.0 hours to draft and defend. Accordingly, the Court strikes 2.2 hours from the anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported. As such, the Court awards the following:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Caitlin Rice, Associate Attorney	6.2	\$350.00	\$2,170.00
Jeffery Mukai, Partner	1.6	\$350.00	\$560.00
Jacob Cutler, Partner	1.1	\$350.00	\$385.00
Matias Leite, Associate Attorney	7.2	\$350.00	\$2,520.00

Phil Thomas, Associate Attorney	0	\$350.00	\$0.00
Phil Thomas, Associate Attorney	13.1	\$350.00	\$4,585.00
Roger Kirnos, Managing Partner	0.1	\$350.00	\$35.00
Zachary Powell, Senior Attorney	1.3	\$350.00	\$455.00
Stephanie Rosado, Law Clerk	1.8	\$150.00	\$270.00
Anticipated Fees	1.3	\$350.00	\$455.00
TOTAL	33.7		\$11,435.00

Although Plaintiffs seek a 1.5 multiplier, the Court denies Plaintiffs' request. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no evidence supporting such an enhancement in this uncomplicated case. Specifically, there was no exceptional quality of work or skill in this case to justify a multiplier, especially as there was no complex law and motion presented in this basic lemon law case. Plaintiffs submit no evidence to show that their discovery motions or opposition to Defendant's motion to compel arbitration were anything but routine. Counsel's request based on contingency fee should already be accounted for in their hourly rate.¹ An enhancement would be merely double billing here.

B. Costs

¹ In recognition of counsel's contingency fee argument, the attorneys' reduced hourly rates were increased from \$300.00 to \$350.00 per hour.

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses.

Defendant argues that Plaintiffs failed to provide any details to support their request for \$1,426.00 in “other” costs. However, the memorandum of costs worksheet indicates these include \$1,420.00 in “attorney services and messenger court filings and service” and \$6.00 in “minute orders.” (Memo of Costs, p. 4.) Further, a “verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) Accordingly, Defendant’s argument of insufficient documentation fails.

Under the Song-Beverly Act, the Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Accordingly, the Court denies Defendant’s motion to strike \$1,426.00 from Plaintiffs’ requested costs.

Plaintiffs have already filed a memorandum of costs. Local Rule 1045(b) provides in pertinent part:

The entry of costs and fees shall be in accordance with the provisions of Code of Civil Procedure section 685.090, California Rules of Court rules 8.104 and 8.751 describing what constitutes entry, and any other applicable provision of law. In cases where a party is entitled to costs because a motion to tax or strike a cost memo was not brought, such costs shall be deemed entered upon the expiration of the time for making the motion.

Defendant has not filed a motion to tax; accordingly, once the time has passed, the costs are deemed a part of the judgment. Accordingly, the Court awards costs in this motion, and the Court strikes the memorandum of costs to prevent double recovery.

The Court grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs). This award shall be paid within 30 days of the date of this order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2407309	GARCIA vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL DEPOSITION ATTENDANCE OF A PERSON MOST QUALIFIED ON CATEGORIES NOT PRODUCED BY DEFENDANT AMERICAN HONDA MOTOR CO. INC

Tentative Ruling:

Summary of Ruling: The Court denies Plaintiffs' Motion to Compel Deposition Attendance of a PMQ. The Court denies Plaintiffs' Request for Sanctions.

Factual/Procedural Context

This is a lemon law action. Plaintiffs Sergio Garcia and Nayelli Garcia ("Plaintiffs") purchased a Certified Pre-Owned 2020 Acura MDX ("Subject Vehicle"), for which Defendant American Honda Motor Co., Inc. ("AHM") provided express and implied warranties. (Sapra Decl. ¶ 2.) Plaintiffs allege that after purchase they began experiencing persistent electrical issues and issues with the Subject Vehicle's Collision Mitigation Braking System ("CMBS"), and that although Plaintiffs delivered the vehicle for repair on numerous occasions, AHM was unable to conform the vehicle to its warranties and failed to promptly repurchase or replace it as required under the Song-Beverly Act.

(*Id.*)

Plaintiffs filed their initial Complaint on December 26, 2024, and their operative First Amended Complaint on April 4, 2025, asserting causes of action for (1) violation of the Song-Beverly Act – breach of express warranty and (2) fraudulent concealment. (*Id.* at ¶ 3.)

On March 23, 2026, Plaintiffs served their Second Amended Notice of Deposition of AHM's Person Most Qualified (“PMQ”) and Custodian of Records, setting the deposition for May 1, 2026. (*Id.* at ¶ 4, Ex. A.) The notice identified 54 matters for examination and categories of documents for production. (*Id.*)

On April 15, 2026, AHM served objections to the deposition notice, objecting generally on the grounds that the categories were vague, ambiguous, overly broad, unduly burdensome, oppressive, sought irrelevant information not reasonably calculated to lead to the discovery of admissible evidence, and to the extent they called for confidential, commercially sensitive, proprietary, or trade secret information. (*Id.* at ¶ 5, Ex. B.) AHM stated that it would produce a witness on May 1, 2026. (*Id.*)

On May 1, 2026, the deposition of AHM's PMQ, Jennifer Pacheco, went forward. (*Id.* at ¶ 6, Ex. C.) AHM's counsel confirmed on the record that Ms. Pacheco was being designated to provide testimony only to matters 29-54, and not to matters 1-28, which relate to the Honda Sensing System alleged to be defective in the Subject Vehicle. (*Id.*) Counsel for AHM indicated that Ms. Pacheco would be presented on the “non-fraud categories,” and that the parties could meet and confer as to the details on matters 1 through 28. (*Id.*)

On June 1, 2026, Plaintiffs' counsel emailed AHM to meet and confer regarding the categories Ms. Pacheco was not prepared to address at the May 1, 2026 deposition.

(*Id.* at ¶ 7, Ex. D.) Between June 1, 2026, and July 8, 2026, the parties engaged in numerous telephonic and email exchanges. (*Id.*) AHM offered some alternatives to producing a PMQ but ultimately did not offer to produce its PMQ on the outstanding categories, and the parties reached an impasse. (*Id.* at ¶ 8.)

On July 8, 2026, having received no agreement to produce a PMQ on the outstanding categories, Plaintiffs filed the instant motion to compel AHM to produce its PMQ for matters 1 and 3-28, together with a request for monetary sanctions in the amount of \$2,310.00. (*Id.* at ¶¶ 9–11.)

Plaintiffs now move to compel AHM to produce its PMQ for matters 1 and 3-28 pursuant to CCP § 2025.450(a), arguing that the noticed matters are relevant and material to their Song-Beverly and fraudulent concealment claims, that AHM's boilerplate objections do not obviate its obligation under CCP § 2025.230 to designate and produce a witness who is most qualified to testify on the noticed matters, and that Plaintiffs must obtain competent testimony on the Honda Sensing System in order to prepare their claims and oppose AHM's Motion for Summary Adjudication. Plaintiffs ask the Court to impose monetary sanctions against AHM and its counsel in the amount of \$2,310.00.

In opposition, AHM argues that Plaintiffs have already effectively obtained the deposition testimony they seek on matters 1-28 through the cross-noticed deposition of AHM's PMQs on technical and marketing issues related to the CMBS in *Andy Meraz v. American Honda Motor Co., Inc.*, Los Angeles County Superior Court Case No. 22AHCV01340, in which the parties stipulated that the *Meraz* PMQ testimony could be used in the cross-noticed cases, including this action. AHM further contends that Plaintiffs' counsel has been agreeable to accepting a signed stipulation for use of AHM's PMQ

testimony and related exhibits in lieu of demanding the witnesses be re-deposed in every case, and that AHM has returned an executed copy of the stipulation. AHM also argues that Plaintiffs' request for monetary sanctions should be denied.

In reply, Plaintiffs assert that the *Meraz* testimony is not substantively relevant to the CMBS issues in the Subject Vehicle because the camera and radar systems that comprise the CMBS in Plaintiffs' 2020 Acura MDX were manufactured by Nidec, while the *Meraz* vehicle (a 2022 Honda Accord) contained Bosch components (Sapra Decl. ¶ 3), and that no testimony from any cross-noticed case has addressed the camera and radar systems at the heart of the Subject Vehicle's CMBS functionality. Plaintiffs further contend that AHM cancelled a purportedly scheduled deposition on September 10, 2026, offering no explanation other than "unexpected circumstances." Plaintiffs renew their request for monetary sanctions.

Meet and Confer

Plaintiffs have satisfied their meet and confer obligation via telephone, and filed an appropriate declaration in compliance with CCP §§ 2016.040 and 2025.450(b)(2). (Sapra Decl. ¶ 7.)

Analysis

1. Motion to Compel Deposition Attendance

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action." (CCP § 2025.010.) A party seeking to depose an organization may serve a deposition notice describing "with reasonable particularity the matters on which examination is requested" and "the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters

to the extent of any information known or reasonably available to the deponent.” (CCP § 2025.230.)

CCP § 2025.450(a) provides the remedy when a deponent fails to appear:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, **fails to appear for examination, or to proceed with it**, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(CCP § 2025.450(a) [emphasis added].) The statute's text is explicit: the motion is available when the deponent fails to appear for examination, or to proceed with it. This contemplates a complete failure to appear or a refusal to proceed once the deposition has begun.

When a deponent objects to a deposition notice, section 2025.410(c) addresses the procedure: “a party may also move for an order staying the taking of the deposition and quashing the deposition notice” (CCP § 2025.410), and “[t]he taking of the deposition is stayed pending the determination of this motion.” (CCP § 2025.410(c).) The statute indicates that serving objections alone does not automatically stay a deposition; the objecting party must file a motion to quash to achieve that result. (*Id.*)

If the objecting party does not move to quash, and the deposition proceeds, any dispute about the scope of examination or the adequacy of the deponent's preparation is governed by section 2025.480. (CCP § 2025.480(a).) That section provides that “[i]f a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the

court for an order compelling that answer or production.” (*Id.*)

Here, the threshold predicates for a section 2025.450(a) motion are not met. AHM did not fail to appear at the May 1, 2026 deposition. The record shows that the deposition of AHM’s PMQ, Jennifer Pacheco, went forward on that date. (Sapra Decl. ¶ 6, Ex. C.) A witness appeared and the deposition proceeded. (*Id.*) The dispute is about which topics that witness was designated to address.

At the May 1 deposition, AHM’s counsel confirmed on the record that Ms. Pacheco was being designated to provide testimony to matters for examination numbers 29-54, and not matter nos. 1-28 in Plaintiffs’ notice. (*Id.* at ¶ 6, Ex. C [Pacheco Dep. 10:23–11:8].) AHM’s counsel stated that Ms. Pacheco would testify on non-fraud categories and suggested the parties meet and confer regarding matters 1-28. (*Id.*) This is not a failure to appear. It is a partial designation combined with an objection to the scope of examination.

AHM served objections to the deposition notice on April 15, 2026. (*Id.* at ¶ 5, Ex. B.) Plaintiffs did not move to resolve those objections before the deposition. Plaintiffs proceeded with the deposition, and Ms. Pacheco appeared and testified on some categories. When a corporate deponent appears but limits the scope of its designation, and questions remain about which categories the witness can address, the appropriate motion is under section 2025.480 to compel answers, not under section 2025.450 to compel attendance. Plaintiffs’ notice of motion expressly invokes only section 2025.450(a) as the basis for the relief sought (Pls.’ Notice of Mot. 2:5), and the Court “may consider only the grounds stated in the notice of motion.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125; CRC Rule 3.1110(a).)

Plaintiffs argue in reply that there was a subsequently scheduled deposition for

September 10, 2026, confirmed on February 26, 2026, that AHM cancelled on September 9, 2026, due to unexpected circumstances. (See Pls.' Reply 2:17–21.) If AHM failed to appear at a properly noticed deposition in September 2026, that would present the predicate for a section 2025.450 motion. However, Plaintiffs' moving papers (filed July 8, 2026) make no mention of a September 10 deposition date. The motion instead challenges AHM's May 1, 2026, conduct. The September 10 date is raised for the first time in reply, and the record does not establish whether a formal amended deposition notice was served for that date, whether it covered the disputed categories, or whether Plaintiffs appeared and attempted to proceed. Without a complete factual showing that AHM failed to appear at a properly noticed deposition for categories 1 and 3-28, the Court cannot grant relief under section 2025.450(a).

The proper procedural vehicle for Plaintiffs' dispute—*i.e.*, whether Ms. Pacheco should have been designated for categories 1 and 3-28, and whether AHM must now produce a different or better-prepared witness—is either (1) a motion to compel further answers under section 2025.480 if questions were asked and refused at the May 1 deposition, or (2) a motion for protective order or to resolve objections to the deposition notice under section 2025.410, followed by a motion to compel attendance at a properly noticed resumed or new deposition if AHM then fails to appear. Section 2025.450(a) does not authorize the Court to compel attendance when the deponent appeared and testified but the noticing party contends the wrong witness was designated or the designation was inadequate.

Because the motion fails on the threshold statutory predicate, the Court need not reach AHM's arguments about the sufficiency of cross-noticed testimony from the *Meraz* case, or Plaintiffs' arguments about the relevance of testimony specific to the camera and

radar systems in the Subject Vehicle. Those disputes may be material if the parties re-notice a deposition and AHM moves to quash or Plaintiffs move to compel further testimony under the correct statutory framework.

2. Monetary Sanctions

CCP § 2025.450(g)(1) provides: “If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).) Because the motion is denied on threshold grounds, mandatory sanctions do not apply.

Section 2025.480(j) provides that “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.480(j).)

Even if Plaintiffs had proceeded under section 2025.480, the Court would find that AHM’s position rests on substantial justification, and that other circumstances, including the parties’ good-faith disagreement about the scope of AHM’s designation obligations and the applicability of cross-noticed testimony, make the imposition of sanctions unjust. The Court therefore declines to award sanctions against either party.